

Mr Nithyananda Rai vs Mrs Soumya on 5 June, 2023

Author: Alok Aradhe

Bench: Alok Aradhe

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MFA No. 4731 of 2022
C/W MFA No. 4751 of 2022

IN THE HIGH COURT OF KARNATAKA AT BENGALURU
DATED THIS THE 5TH DAY OF JUNE, 2023
PRESENT
THE HON'BLE MR. JUSTICE ALOK ARADHE
AND
THE HON'BLE MR. JUSTICE ANANT RAMANATH HEGDE
MISCELLANEOUS FIRST APPEAL NO.4731 OF 2022 (FC)
C/W
MISCELLANEOUS FIRST APPEAL NO.4751 OF 2022 (FC)

IN M.F.A. NO.4731/2022
BETWEEN:

1. MR. NITHYANANDA RAI
S/O NARAYANA RAI
AGED 37 YEARS
R/O THALAKALA PADE HOUSE
KOLAMBE POST, BAJPE 574189
MANGALURU TALUK
DAKSHINA KANNADA.

...APPELLANT

(BY SRI. PRASAD B.S. ADV.,)

Digitally
signed by
RUPA V
Location:
High Court
of Karnataka

AND:

1. MRS. SOUMYA
D/O DERANNA SHETTY
AGED 31 YEARS
R/O KIDDOORU, ARANTHODU
ICHALAMPADY POST, VIA KUMBLE
KASARAGOD-671321, KERALA STATE.

...RESPONDENT

THIS MFA IS FILED UNDER SECTION 19(1) OF FAMILY
COURT ACT, AGAINST THE JUDGMENT AND DECREE DATED
26.03.2022 PASSED IN M.C.NO.144/2018 ON THE FILE OF
THE PRINCIPAL JUDGE, FAMILY COURT, DAKSHINA KANNADA,
MANGALURU, DISMISSING THE PETITION FILED

UNDER SECTION 13(1)(ia)(ib) OF THE HINDU MARRIAGE ACT,

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MFA No. 4731 of 2022
C/W MFA No. 4751 of 2022

1955, ALLOWING THE COUNTER CLAIM OF RESPONDENT
UNDER SECTION 9 OF HINDU MARRIAGE ACT, 1955 FOR
RESTITUTION OF CONJUGAL RIGHTS.

IN M.F.A. NO.4751 OF 2022
BETWEEN:

1. MR. NITHYANANDA RAI
S/O NARAYANA RAI
AGED ABOUT 37 YEARS
R/O THALAKALA PADE HOUSE
KOLAMBE POST, BAJPE-574189
MANGALURU TALUK
DAKSHINA KANNADA.

...APPELLANT

(BY SRI. PRASAD B.S. ADV.,)
AND:

1. MRS. SOUMYA
D/O DERANNA SHETTY
AGED 31 YEARS
R/O KIDDOORU ARANTHODU
ICHALMPADY POST, VIA KUMBLE
KASARAGOD-571321, KERALA STATE.

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UNDER SECTION 13(1)(ia)(ib) OF THE HINDU MARRIAGE ACT,
1955.

THESE APPEALS COMING ON FOR ORDERS, THIS DAY,
ALOK ARADHE J., DELIVERED THE FOLLOWING:

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MFA No. 4731 of 2022
C/W MFA No. 4751 of 2022

JUDGMENT

Mr.Prasad B.S., learned counsel for the appellant submits that the dispute between the parties has been amicably settled. A memo filed in this regard is accepted.

Accordingly, appeals are dismissed as withdrawn. Consequently, pending interlocutory application is also dismissed.

Sd/-

JUDGE Sd/-

JUDGE RV